



Student Disciplinary Policy

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Version Control			
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1. Purpose

Trent Education Centre (TEC) is committed to providing all students with a high-quality teaching and learning experience. This can only be achieved in an atmosphere founded on mutual respect. As representatives of TEC, students are expected to conduct themselves in a manner that creates a comfortable and safe environment and reflects positively on TEC's reputation. This depends upon students behaving with respect towards staff, fellow students, and all other visitors.

2. Scope

This policy applies to all TEC students and their visitors. A student is defined as anyone who is studying on a course at TEC, including those enrolled full-time, part-time, or on short courses at any TEC Study Centre. A visitor is any individual who is neither a student nor a staff member but visiting the premises for any reason including people invited by a student into the TEC premises.

Where a breach of the law is suspected, TEC may report the matter to the police. The **Student Disciplinary Policy** operates independently of any police investigation or action. Students found to be in breach of this policy will be subject to TEC's Student Disciplinary Procedures below. This is not the same policy that is used for students in breach of the **Academic Misconduct Policy**. In certain cases, students may be subject to both the procedures in the Academic Misconduct Policy and the Student Disciplinary Policy simultaneously. Disciplinary matters relating to staff are addressed in the **Staff Disciplinary Policy**.

The **Student Disciplinary Policy** addresses non-academic disciplinary matters and applies to the following:

- Student conduct both during and outside class hours.
- Behaviour anywhere within TEC's premises
- Off-site behaviour when students are associated with TEC or involved in incidents that could damage TEC's reputation.
- Online activity, including social media, where TEC, its staff, or students are involved and the content is likely to harm TEC's name.

Conduct may be physical or verbal. It can involve, actions, comments or a combination of both. Conduct may be inappropriate but not too serious, serious misconduct or gross misconduct. For cases of serious or gross misconduct, a student can be suspended or expelled and have their studies terminated. In the most serious cases of gross misconduct, if there is the possibility of harm or risk to the safety and wellbeing of any person, a student may be suspended or expelled immediately without warning.

3. Conduct Requiring Disciplinary Action

3.1. Inappropriate Conduct

Any behaviour that disrupts TEC's operations or damages its reputation, or affects a member of staff, student or other person negatively is considered inappropriate and may lead to a student receiving a verbal warning. This may include:

- Disruptive behaviour that prevents students from being able to focus on their learning and prevents staff from being able to teach effectively.
- Refusing to cooperate with requests from tutors and other TEC staff e.g. repeatedly making personal phone calls during lessons.
- Obstructing or interfering with the work or duties of anyone at TEC.
- Failure to provide information on change of circumstances in a timely manner such as a change of address.
- Failure to respond to repeated requests by email or other means.
- Failure to attend disciplinary hearings without valid reason.
- Refusal to provide personal details when reasonably requested by TEC staff.
- Failure to attend classes without having authorised absence. See the TEC **Student Attendance and Engagement Policy**.
- Failure to submit assignments by deadline without having Mitigating Circumstances. See the TEC **Assessment Policy** for more information.

3.2. Serious Misconduct

More serious behaviour that may lead to a student receiving a written warning or a suspension.

- Any inappropriate conduct that a student repeatedly commits regardless of receiving a verbal warning.
- Conduct that harms TEC's reputation or undermines its academic and business objectives.
- Misuse of TEC property or facilities, including use of IT systems for personal reasons.
- Verbally angry or aggressive behaviour towards any member of staff, student or other person at TEC or during TEC related activities.
- Recording or taking photographs of anyone without their consent.
- Non-payment of fees or debts as set out in TEC's Terms and Conditions.
- Smoking in any areas designated as non-smoking areas.
- Littering anywhere inside or around TEC premises or when engaged in TEC activities at other locations.
- Neglecting to take appropriate care of facilities such as classrooms, bathrooms, and all other communal spaces.
- Breaching fire safety regulations.

3.3. Gross Misconduct

The most serious behaviour that may be illegal, may involve police action and may lead to immediate suspension or dismissal.

- Any serious misconduct that a student repeatedly commits regardless of receiving a written warning.
- Criminal offences committed on TEC property, during TEC activities, or against TEC members. In these cases, it is likely that TEC will report the matter to the Police.
- Any form of sexual misconduct or sexual harassment. See the TEC **Sexual Harassment Policy**.
- Any form of harassment or bullying of another person. See the TEC **Anti-Harassment and Bullying Policy (Students)**
- Any act of physical violence towards another person.
- Theft of any property.
- Any act of intentional damage to property, equipment or resources.
- Under the influence of alcohol or any illegal drugs at TEC.
- Possession or distribution of illegal drugs.
- Any form of gambling on TEC premises.
- Engaging in offensive, or threatening language whether spoken, written, or online, towards anyone at TEC or during TEC activities.
- Sharing or publishing offensive, threatening or illegal content, whether on TEC property, via TEC networks, or elsewhere that could damage TEC's reputation or cause others to feel unsafe.
- Fraud or deception such as presenting false documents or false information about themselves or another person.
- Actions that endanger health or safety on TEC premises or elsewhere.
- Behaviour that compromises TEC's security.
- Refusing to leave TEC premises when requested by staff.
- Refusal to comply with TEC policies.

Note: This list is not exhaustive and there may be many other examples of inappropriate conduct, serious misconduct or gross misconduct that may lead to verbal warnings, written warnings, temporary suspension from studies or being permanently expelled.

4. Student Disciplinary Procedure

4.1. Verbal warning

For cases of inappropriate behaviour, a student will likely be given a verbal warning by a relevant member of staff such as their tutor or other senior member of staff. A verbal warning will be recorded and placed on the student's personnel file for 3 months after which it will be discarded. No further action will be taken unless the student fails to respond appropriately with affective remedies and repeats the inappropriate behaviour, at which point there may be escalation to a written warning or potentially a suspension if the behaviour is considered serious enough and harmful to others or the reputation of TEC.

4.2. Hearing

Students who face allegations (the accused) which may lead to a written warning, suspension or being expelled, will be invited to attend a hearing. The hearing will consist of the following members:

Student Disciplinary Hearing Panel (SDDHP)

- The Head or Operations or Head of Compliance (Chair)
- The Head of Programme
- The Tutor of the student
- The student
- One person, selected by the student to provide support, this may be another student, friend or family member

During the hearing, the panel will discuss the allegation(s), listen to the responses from the student, consider any witness statements or other evidence before reaching a decision. If the student fails to attend the hearing, the hearing will go ahead without them.

The SDDHP will reach one of the following decisions

- No action will be taken
- A verbal warning will be issued
- A written warning will be issued

4.3. Written warning

Following the hearing, a written warning may be issued and a copy placed in the student's personnel file for 6 months after which it will be disregarded. The written warning will include the following information sent by email by the Chair of the SDDHP or the Head of Programme. The Chair of the SDDHP or Head of Programme must present evidence to, and have agreement from, one other member of the Senior Management Team of staff before emailing a written warning.

Written Warning Statement

Written Warning	
Section	Details
Name of student receiving the written warning.	
Name of staff giving the warning.	
Date of warning.	
Date or any previous warning(s)	
Reason for giving the warning (What happened or has been happening that requires a warning).	
Any specific dates relevant to the behaviour	
Any evidence e.g. statements by witnesses, emails or other evidence for poor conduct.	
Any remedial action required.	
Deadline for any remedial action to be completed and reviewed.	

No further action will be taken unless the student fails to respond appropriately with affective remedies at which point there may be escalation to a suspension or dismissal depending upon the severity of the breach in discipline.

4.4. Suspension

A suspension may be issued with or without notice, depending on the circumstances and the seriousness of the student's conduct, and may occur without a hearing, whether or not warnings have been issued. For cases of alleged gross misconduct, it is possible that a student will be suspended while an investigation is taking place.

The student will receive the following information sent by email by the Chair of the SDDHP or the Head of Programme. The Chair of the SDDHP or Head of Programme must present evidence to, and get approval from, another member of the Senior Management Team before emailing a suspension notice to a student.

The following will be emailed for a suspension.

Suspension Notice	
Section	Details
Name of student suspended.	
Name of staff informing them about the suspension.	
Name of a second member of the Senior Management Team.	
Date of suspension.	
Recommended length of suspension.	
Reason for the suspension.	
Any specific dates relevant to the behaviour.	
Any evidence e.g. statements by witnesses, emails or other evidence for poor conduct.	
Date when suspension will end.	
Any remedial action required after suspension is lifted.	
Deadline for any remedial action to be completed and reviewed.	

4.5. Being Expelled

A student may be expelled with or without notice, depending on how serious the student's conduct has been. It is more likely, however, that the student will be suspended while an investigation and a hearing is conducted.

The student will receive the following information sent by email by the Chair of the SDDHP or the Head of Programme if the SDDHP decides to expel the students. The Chair of the SDHP or Head of Programme must present evidence and get approval from the Senior Management Team before sending an email expelling a student. The following will be emailed for if a student is expelled.

Notice to Expel	
Section	Details
Name of the student being expelled	
Name of staff informing them about being expelled.	
Name of a second staff member approving the student being expelled. This must be a member of the Senior Management Team.	
Date the student is expelled.	
Reason for being expelled.	
Any specific dates relevant to the behaviour.	
Any evidence e.g. statements by witnesses, emails or other evidence for poor conduct.	

4.6. Appeal

A student will be entitled to appeal against any disciplinary decision taken including if they are expelled and they must follow the appeals procedure set out below.

Students may appeal to the Managing Director and/or the Executive Principal about any disciplinary decision that has been taken including a verbal or written warning, suspension or being expelled. The student must complete and send the following table by email to the Managing Director and/or the Executive Principal if they wish to make an appeal.

Appeal against a Student Disciplinary Decision	
Section	Details
Name of student making the appeal.	
What is the appeal against.	
Date of the disciplinary decision.	
Date of the appeal (must be within 14 days of the decision).	
Reason for the appeal.	
Any evidence e.g. statements by witnesses, emails or other evidence.	

The appeal will go to the Student Discipline Appeals Panel (SDDAP) which includes the following members:

- Managing Director (Chair)
- Executive Principal

The SDDAP will review the case and all the evidence. They will call the appellant to a meeting to present their case and reach a decision as follows:

- The appeal will be upheld and any penalties overturned
- The allegation will be upheld but the severity of the penalty reduced for example from a suspension to a written warning
- The allegation and the severity of the penalty will be upheld.

The Chair of the SDDAP or Executive Principal will send an email to the appellant with the decision. The decision of the SDDAP is final.

5. Criminal Offences

If staff suspect a student has committed a criminal offence, TEC may:

- Refer the matter to the police
- Suspend the student during police enquiries
- Pause or continue disciplinary proceedings

Once police enquiries conclude, TEC may resume disciplinary action. TEC decisions are based on reasonable belief following investigation, not on criminal conviction. TEC is not bound by the outcome of criminal proceedings.

6. Variations and Amendments

TEC reserves the right to modify procedures when required, maintaining fairness and keeping the student informed. This may involve appointing alternative staff to conduct hearings if there are conflicts of interest or if the original staff member is unavailable.